

COMBRINCK v. CLERICO

23CV46872

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

Plaintiff's suit seeks a partition by sale of the real properties located at: 1) 41 Purdy Road, Angels Camp; 2) 938 Purdy Road, Angels Camp; and 3) "Dead Horse Mine" (Calaveras County Assessor Parcel Number 062-002-094-000), and Declaratory Relief. Plaintiff now brings a Motion for Judgment on the Pleadings.

A motion for judgment on the pleadings, like a general demurrer, challenges the sufficiency of the plaintiff's cause of action and raises the legal issue, regardless of the existence of triable issues of fact, of whether the complaint states a cause of action. The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer. The pleadings are to be treated as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. "We review the complaint de novo to determine whether [it] alleges facts sufficient to state a cause of action under any legal theory." (*Ellerbee v. County of Los Angeles* (2010) 187 Cal.App.4th 1206, 1213–1214.)

Plaintiff's Motion for Judgment on the Pleadings is identical to the Demurrer to Cross-Complaint previously filed except for the descriptions of motion, a request for Judicial Notice of portions of the court's file, and a two-sentence addition that "this Motion is Procedurally Proper" which states:

IV. THIS MOTION IS PROCEDURALLY PROPER

"Denial of motion without prejudice impliedly invites the moving party to renew the motion at a later date, when he can correct the deficiency that led to the denial, so Code of Civil Procedure section 1008 is inapplicable." (*Farber v. Bay View Terrace Homeowners Assn'* (2006) 141 Cal.App.4th 1007, 1015.)

"Here, the Court explicitly denied the Cross-Defendants' prior motion "without prejudice" to bringing a motion for judgment on the pleadings on the same topic. As such, this Motion is procedurally proper. **(Request for Judicial Notice No. 1.)** [Emphasis in original.]"

Given the fact that apart from these two sentences arguing that the December 8, 2023, overruling of the Demurrer was done without prejudice, and therefore the Motion for Judgment on the Pleadings is proper ignores the language in the statute and cases. The Court does not dispute that the present motion is procedurally appropriate, noting CCP § 438 (g)(1) directly addresses the motions propriety, and provides:

(g) The motion provided for in this section may be made even though either of the following conditions exist:

(1) The moving party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that there has been a material change in applicable case law or statute since the ruling on the demurrer.

The issue for this Court is whether or not the motion has substantive merit.

The Court grants the request for judicial notice and takes notice of the requested file items listed in the request.

Authority upheld the procedure where "there has been a material change in applicable case law or statute since the ruling on the demurrer. "[A] motion for judgment on the pleadings may not be granted if a demurrer on the same grounds was either not made or was overruled unless there has been an intervening material change in the applicable law." (CCP § 438, subd. (g)(1); *Edwards v. Centex Real Estate Corp.* (1997) 53 Cal.App.4th 15; *Yancey v. Superior Court* (1994) 28 Cal.App.4th 558, 562, fn.1.) No intervening material change in the substantive applicable law has been asserted.

Plaintiff/cross-defendant's Motion for Judgment on the Pleadings is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to CRC 1.1312 in conformity with this Ruling.

SANCHEZ, et al., v. SIMPSON, et al.

22CV46351

- **DEFENDANT’S MOTION TO MEDIATE AND ARBITRATE**
 - **PLAINTIFF’S MOTION FOR ORDER GRANTING PREFERENCE IN SETTING CASE FOR TRIAL**

As the court previously noted, “This is a civil action stemming from an oddly conceived real estate transaction between friends, neighbors, and distant cousins. The plaintiffs — elderly and/or infirm — sold their residence to defendants for \$356,000 but obtained no cash in the transaction. Instead, plaintiffs agreed to pay all escrow fees and carry back the entire purchase price (minus \$1,000) as a promissory note with only 3% interest. Based on the amortization schedule provided by escrow, plaintiffs were not due to be paid in full until after two of three plaintiffs had reached the age of 107. Plaintiffs allege in their Complaint that many of the terms “understood” by the parties did not make it into the Residential Purchase Agreement (RPA) signed by the parties, such as defendants’ obligation to secure financing to pay off the promissory note in due course. (See prior ruling, dated December 12, 2022.)

The procedural history of this case also exhibits an unusual sequence of events. Defendants have never filed a response, yet their counsel participated in the *ex parte* hearing for Temporary Restraining Order (TRO) on Oct. 11, 2022, held one day after filing the complaint. Subsequently, both counsel stipulated to postpone the Preliminary Injunction hearing from Oct. 21, 2022, to Nov. 4, 2022, and then again to Dec. 2, 2022, when the court granted the Preliminary Injunction request.

Both parties’ original Case Management Statements state that they were engaged in mediation. The defendants’ recent statement expressed an Interim Settlement Agreement, allowing the plaintiffs to move personal property off the lot while defendants make property improvements for financing options.

Defendants originally filed a Motion for Order to Mediate, which was withdrawn and refiled as a Motion for Order to Mediate and Arbitrate on March 4, 2024. (Defense counsel provided plaintiffs’ counsel with Local Rule 3.3.7 language in mailed correspondence dated March 22, 2024, although the language was not included in either of defendants’ motions; the Court will proceed substantively as there is the belated reference to the Court’s tentative ruling system but notes any future motions will be denied if the notice lacks the mandatory language.)

On March 6, 2024, plaintiffs filed a Motion for Order Granting Preference in Trial Setting. While the motions are inter-related, the history remains peculiar. Plaintiffs made arguments based on a Declaration of counsel that was initially objectionable; however,